ISRAEL DUNE
versus
NED MATUMBU
and
MINISTER OF LOCAL GOVERNMENT, PUBLIC WORKS AND NATIONAL HOUSING N.O.

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 26 March & 7 April 2026

Civil Trial

V. Makuku, for the plaintiff
1st defendant in person
A. Magunde, for the 2nd defendant

DEMBURE J:

[1] This is an action in which the plaintiff seeks an order for the ejectment of the first defendant and all those claiming occupation through her from stand 9008 Lot 4 of Hopley Township, Waterfalls, Harare; the demolition of all dwelling houses and any structures she erected at the said property within 48 hours of service of the court order failing which the Sheriff of the High Court be authorised to demolish the said illegal structures and that the first defendant pays the costs of suit on a legal practitioner and client scale.

[2] The first defendant contested the claim, while the second defendant consented to the relief sought and confirmed that it had granted the plaintiff rights in the property under a lease-to-purchase agreement. While the first defendant had filed a plea, at the hearing she could not advance her defence at all, save to ask the court for more time to obtain the relevant documents from the second defendant to regularise her occupation of the property. She conceded that she had no defence to the claim and had nothing to stand on.

FACTUAL CONSPECTUS

[3] On 22 September 2022, the plaintiff had summons issued against the defendants for an ejectment order and other ancillary relief. The first defendant entered an appearance to defend and filed a plea. It is common cause that the plaintiff was allocated Stand 9008 Lot 4 of Hopley Township, Harare (*"the property"*) through the developer, Tanaka Development Group. The developer had a partnership agreement with the Ministry of Local Government to develop the stands in the area. The title in the property is still registered in the name of the State, and the property is under the administration of the second defendant.

[4] There was no dispute that the plaintiff entered into a written lease-to-buy agreement with the second defendant over the said property on 22 March 2019. In terms of that agreement, the plaintiff was granted exclusive rights of occupation and development of the said property. It was also undisputed that the first defendant was in occupation of the property and had erected some structures thereon. Her occupation or possession was not with the authority or consent of the plaintiff or the second defendant, the owner of the land. She admitted that she had no documents for the stand and, in fact, asked for more time to seek such papers from the second defendant. In her plea, the first defendant pleaded that she bought the stand under the Harare South Housing Cooperative, then spearheaded by her then Member of Parliament, Shadreck Mashayamombe, whom she said had promised to take her to the Ministry of Local Government to obtain the paperwork for the stand.

[5] At the hearing, she abandoned her defence as she did not confirm her plea in evidence, nor did she adduce any evidence establishing any right of retention. The second defendant filed what was termed a 'plea', but in substance it was simply a consent to judgment. It was averred that the Minister is the administrative authority responsible for allocating urban state land. The second defendant confirmed that the plaintiff was allocated the property by the developer. It was further asserted that the second defendant, through the recommendation of the developer, issued the plaintiff a registered lease agreement. A position was further taken that, according to the Ministry's records, the first defendant was never allocated the stand in question or any other stand.

[6] At the Pre-Trial Conference, the following were identified as the issues for trial:

> "1. Whether or not the Plaintiff is the legal holder of rights, title and interest in Stand 9008 Lot 4 Hopley Township, Harare held through the 2nd Defendant.
>
> 2. Whether or not the 1st Defendant is in illegal occupation and liable for eviction and demolition of the illegal structures built."

[7] I must state that, while the above were said to be the triable issues, at trial it turned out there were no issues to resolve, as the facts entitling the plaintiff to the relief sought were uncontested. The first defendant did not adopt the defence she had pleaded in the plea. She simply asked for more time to acquire documentation for the stand from the second defendant through the hand of her former MP, Mashayamombe. There was no evidence to rebut the plaintiff's case.

[8] Before the trial could commence, the first defendant's erstwhile legal practitioner, Mr *Chikono,* asked for some time to seek further instructions and properly advise his client. That time was granted, and the trial was postponed from 24 March to 26 March 2026. He ended up filing a notice of renunciation of agency and appeared on 26 March 2026 to seek the court's leave to be excused. There was no objection to the request, and having confirmed that he had fully advised the first defendant of the nature of the proceedings and what was expected of her, I granted the request. The first defendant became a self-actor. When I asked her whether she appreciated the proceedings and was ready to proceed, she confirmed that she was prepared for the trial and that we could proceed.

[9] The trial commenced with the plaintiff opening his case, and he was the sole witness. He was cross-examined by the first defendant, after which he closed his case. I hasten to state that the cross-examination did not challenge the plaintiff's evidence in material respects. The first defendant opened her case and was sworn in to testify in her defence. She could only say that she was requesting more time to obtain the property documentation through the second defendant. After that, she stated that she was not calling any other witness as her witness was unavailable. She accordingly closed her case.

[10] Ms *Magunde*, for the second defendant, submitted that their position had already been set out in the plea that the plaintiff was allocated the stand. She further stated that she would not oppose the relief sought. She did not call any witnesses. The parties were invited to file closing submissions, but none opted to do so.

THE LAW

[11] It is trite that a person who enters into a lease-to-buy agreement, has complied with its terms and assumed control of the property, even though he had not actually moved onto the property, is taken to have acquired control over the unoccupied property, and a real right over the property. The person is entitled to seek the eviction of any trespasser or of anyone who unlawfully takes possession thereof without his or her consent. The legal position was restated in *Shuro* v *Chiuraise & Anor* SC 20/19, where GARWE JA (as he then was) had this to say:

> "[32] In *Pedzisa* v *Chikonyora* 1992 (2) ZLR 445 (S), the respondent had entered into an agreement to purchase a property on a lease to buy basis from the owner/lessor of the property. In terms of the agreement, title to the property would only pass on fulfilment of certain conditions, one of which was that the lessee-to buy was not to sub-let or assign the property without the written consent of the owner-lessor. The purchaser, who was living elsewhere, did not move into the house but instead sublet the property to the appellant and further assigned the property to him by selling his right of occupation and eventual right to take title. The consent of the owner was not sought before the respondent entered into a sublease with the appellant. At a later stage, the respondent sought the eviction of the respondent from the premises. The main issue on appeal was whether the respondent, as lessee-to-buy, had *locus standi* to sue for the eviction of the appellant without having obtained a cession of action from the owner-lessor.
>
> [33] This Court held that although the terms of a lease-to-buy agreement were such that the respondent initially acquired only a personal right exercisable against the owner-lessor and not against third parties without recourse to the owner-lessor, such a personal right entitled him to delivery of vacant possession of the property. But once he had been given vacant possession of the property and had assumed physical control over it, he then acquired a real right, entitling him to evict anyone who wrongfully occupied the property such as a trespasser. Although the respondent had not actually moved into the house, he had acquired control over the unoccupied property, and thus acquired a real right over the property. Accordingly, the respondent had *locus standi* to sue for the eviction of the appellant, even though he had not obtained a cession of action from the registered owner. The court further held that the fact that the respondent had entered into a sublease in breach of a clause in the lease-to-buy agreement requiring the prior consent of the owner before any sublease or assignment was effected did not preclude the respondent from suing for the eviction of the respondent.

> [34] The facts in the above case are not materially different from those in the present case. The agreement that Matumba entered into was akin to a lease to buy agreement. Title was only to pass to Matumba after certain conditions were met, including the condition that there was to be no sub-lease and that title would only pass upon full payment of the purchase price and other charges in terms of the agreement. I am satisfied, on the basis of the above authority, that the late Matumba and thereafter the first respondent, to whom the property was subsequently ceded, had the requisite standing to sue for the eviction of the first respondent." (*my emphasis*)

EXAMINATION

[12] The plaintiff's undisputed evidence was that he was allocated the property in question through Tanaka Development Group, the developer. The said developer had a partnership agreement with the second defendant to develop the stands in the area, including Stand 9008, Lot 4 of Hopley Township, and to allocate them to beneficiaries. The said partnership agreement was tendered as Exhibit 1. On the developer's recommendation, the plaintiff signed a lease-to-buy agreement with the second defendant on 22 March 2019. That lease agreement, which included an option to purchase the stand, gave the plaintiff exclusive rights to occupy and develop the property. The agreement was tendered as Exhibit 2. In terms of clause 4 thereof, the plaintiff was obliged to construct buildings on the stand to the value of not less than $80,000.00.

[13] During cross-examination, no questions were asked challenging the validity or authenticity of the lease-to-purchase agreement. The plaintiff's documentary evidence was not challenged by the first defendant. That he had rights, title and interest in the property through the second defendant was not challenged at all. The questions directed at him were mainly about previous hearings in which the first defendant alleged that it was ordered that no one would occupy the stand until the issue of ownership had been verified. She further asked about the destruction of her structures. These questions were not relevant to the plaintiff's rights over the property. In some of the repetitive questions, she even conceded that she did not have any documents from the Ministry of Local Government. The following exchanges during cross-examination by the first defendant exposed her own case:

> "Q. I put it to you that those are administrative errors being taken advantage of by someone, because I was also waiting to get my documents from the Ministry of Local Government?
> A. I don't know how she can wait for the documents from the Local Government when the person who sold the stand is not known at the Ministry of Local Government.
> Q. I put it to you that the person who allocated this stand to me is known he is Mr Mashayamombe and had told me that he was going to help me get the necessary documents from the Ministry since I am affiliated to a certain party?
> A. In the first instance, that deal was illegal as Mashayamombe has no right to allocate land that belongs to the Ministry. Whatever she is claiming is null and void. He has no legal right to allocate any stand." (*my emphasis*)

Clearly from the above, the first defendant had nothing to show that she was allocated the property by the lawful authority in charge of state land, being the second defendant.

[14] The plaintiff's evidence was also not disputed by the second defendant, the lawful authority responsible for allocating the stands and issuing leases. The evidence was also not challenged by the first defendant in material respects. There was no dispute that the plaintiff was not in occupation and had been deprived of his exclusive right to occupy and develop the stand. There was no dispute that the first defendant was in occupation of the property. She also admitted that she had nothing as evidence to establish her right to occupy the property. She conceded, even from the questions she put to the plaintiff under cross-examination, that she was still waiting to go to the Ministry to obtain the necessary documents for the stand. With the second defendant's confirmation that the plaintiff was already allocated the same stand and had signed a lease-to-purchase agreement, her wishes would certainly not materialise. Her fate had already been sealed, and there was no leg to stand on.

[15] All the first defendant could say in her evidence in chief was that she wanted more time to approach the Ministry for the property documentation. She had nothing with her at the trial as evidence to defend the claim. She did not even adopt her defence in evidence. She thus completely abandoned her defence that she bought the stand through the Harare South Housing Cooperative. In line with the authority in *Shuro* (*supra*), the plaintiff, being the registered lessee for the property, clearly has the *locus standi* to seek the eviction of the first defendant. The evidence was clear and undisputed that she was an

illegal occupier. It is trite that an illegal occupier has no right to seek the court's protection. Courts will not, therefore, assist an illegal occupier in maintaining his or her unlawful occupation. It is quite clear that the first defendant is standing on sinking sand and that she has no legal rights that can be enforced at law. MATHONSI J (as he then was) also had an opportunity to consider whether the court can protect one who is in unlawful occupation of land in *Mukuvisi Tashinga Housing Cooperative* v *Musukuma & Ors* HH 478/15, and he said:

> "The applicant in this matter, especially with the benefit of legal counsel, should know that it is standing on sinking sand, it having no legal right that it can possibly enforce at law. It invaded land belonging to the fourth respondent in Msasa Park, Harare, parcelled it out to land seekers and then approached the owner seeking to legitimise an illegal occupation of that land.
>
> It has now been favoured with a taste of its own medicine by the first, second and third respondents, whom the applicant claims invaded its offices, changed the locks and barred the applicant from there with the help of party youths…
>
> There can be no better way of demonstrating that the applicant has no right to protect in a court of law than to cite the very documents it relies upon in making this application…" (*my emphasis*)

[16] The court cannot, therefore, grant the first defendant more time to continue in unlawful occupation of the property. The plaintiff is entitled to the relief sought. All structures erected by the first defendant on the plaintiff's property are, without any doubt, illegal structures. The plaintiff's rights to the stand are unassailable. They remained unchallenged until the end of the trial. The claim must accordingly succeed. The first defendant had no case at all. She clearly abused the court process. Her defence was not only frivolous or vexatious, but it was abandoned at the trial. She conceded that she had completely nothing in evidence to defeat the plaintiff's claim or to show that she had any right of retention. She knew she was an illegal occupant of the property in question, as she also had no authority from the second defendant.

[17] The first defendant simply wasted the court's time and judicial resources, which ought to be used for worthy causes, by being grossly unreasonable to the end. Her counsels had to renounce agency as it had dawned upon them that she had nothing to stand on in a court of law. They literally jumped off the ship before it was too late. Regrettably, the first

defendant persisted with what was clearly nothing to hold onto. The conduct of the first defendant is indeed deplorable and deserves censure through an exemplary award of costs. It is trite that costs on a legal practitioner and client scale are awarded only in exceptional cases. It is further settled that an abuse of court process attracts punitive costs. This position was also restated in *Karengwa* v *Mpofu* HB56/15, where the court held that:

> "On the issue of costs, the court is generally reluctant to award costs on an attorney and client scale against a self-actor. In exceptional circumstances, however, where there is a clear abuse of court process the court is inclined, in such event, to order costs against a self-actor on a punitive scale. The awarding of costs is at the discretion of the court."

[18] On the basis of the above authority and given the conduct of the first defendant as alluded to, I find that the proper judicious exercise of my discretion would be that the first defendant must bear the costs of the suit on a higher scale. Judicial proceedings must be taken seriously. A party cannot simply abuse the court process and expect to be treated with kid gloves. It does not matter that the party is a self-actor.

DISPOSITION

[19] I am satisfied that the plaintiff has proved his case on the balance of probabilities. The essential elements of his claim were established by facts which were largely common cause. There is no doubt that he was allocated the stand in question and further signed a lease agreement with the second respondent, the responsible authority in the allocation of urban state land. His rights over the property were unchallenged. He has a registered lease for the property, numbered A/124/19. It was also not in dispute that the first defendant was in occupation of the stand and erected some structures without the plaintiff's authority or consent or that of the second defendant. On the other hand, the first defendant had no defence to the claim. She failed to adduce any evidence establishing a right to occupy the property. She admitted that she had no document giving her any rights to the property. She was clearly an illegal occupier of the property in question. Consequently, the claim ought to succeed with costs on a punitive scale.

[20] It is accordingly ordered as follows:

1. The 1st defendant and all those claiming occupation through her shall vacate Stand 9008 Lot 4 of Hopley Township, Harare, upon service of this order.
2. The 1st defendant shall demolish all dwelling houses and any structures she and all those claiming occupation through her erected at stand 9008 Lot 4 Hopley Township, Harare, within 48 hours of service of this order, failing which the Sheriff of the High Court or his lawful deputy be and is hereby authorised and directed to demolish the said illegal structures.
3. The 1st defendant shall pay the costs of suit on a legal practitioner and client scale.

DEMBURE J: ……

Makuku Law Firm, plaintiff's legal practitioners
Civil Division of the Attorney-General's Office, 2nd defendant's legal practitioners